Neutral Citation No. - 2023:AHC-LKO:70079

Court No. - 17

Case :- WRIT - C No. - 9399 of 2023

Petitioner :- M/S Jai Jagdamba Metalloys Ltd. Thru. Director Om Prakash
Respondent :- Madhyanchal Vidut Vitran Nigam Ltd. Thru. Managing Director And 2 Others
Counsel for Petitioner :- Vishal Dixit,Ashok Kumar Prajapati,Kamlesh Kumar,Shalini Singh
Counsel for Respondent :- Aprajita Bansal,Sanjay Singh

Hon'ble Alok Mathur,J.

1. Heard Ms. Shalini Singh learned counsel for petitioner as well as Ms. Aparajita Bansal, learned counsel for respondent Nos. 1 & 2 and Sri Sanjay Singh, learned counsel for respondent No. 3.

2. It has been submitted by learned counsel for petitioner that petitioner is a consumer of electricity and with regard to bill dated 04.09.2023 which was served upon the petitioner for a amount of Rs. 1,69,64,502/-, the petitioner had approached the Electricity Lokpal with a prayer to permit the petitioner to deposit the amount in installments in light of the provisions contained in clause 6.144 (2) of Electricity Supply Code, 2005, as the petitioner does not have a financial capacity to pay the said amount in one go.

3. The electricity Lokpal by means of his order dated 21.09.2023 accepted the prayer made by the petitioner and directed him to deposit Rs. one crore on 22.09.2023 and the remaining amount in three equal monthly installments i.e. by October, November and December, 2023 through post dated cheques. It further provide that in case the petitioner fails to comply with the said order, the licensee was given liberty to proceed accordance with law. There is no averment in the writ petition that the said order has been complied with nor any receipt of the deposit of the said amount has been annexed but an oral submission has been made that one crore rupees has already been deposited by the petitioner. It is in the aforesaid facts, the present writ petition has been filed challenging last three lines of the order dated 21.09.2023 where the liberty has been given to the licensee to proceed in accordance with law.

4. Ms. Aparajita Bansal, learned counsel for respondents has submitted that relief as sought by the petitioner has already

been granted and the outstanding amount of electricity charges due upon the petitioner has been directed to be paid in three equal monthly installments and no other reason has been demonstrated for interference and for granting liberty to the petitioner to be given further time for deposit of the outstanding amount and prayed for dismissal of writ petition.

5. I have heard learned counsel for parties and perused the record.

6. It seems that with regard to bill dated 04.09.2023 for an amount of Rs. 1,69,64,502/-, the petitioner had made a request to the Electricity Lokpal for being permitted to pay the said amount of the electricity charges in installments. The said prayer has been duly considered and by means of the impugned order dated 21.09.2023, the petitioner has been directed to deposit one crore rupees on 22.09.2023 and the remaining amount in three equal monthly installments i.e. by October, November and December, 2023 through post dated cheques.

7. The only reason cited by the petitioner is that there is acute financial crisis and consequently prayed for further tme may be granted for the same. Neither audited financial status of the petitioner has been annexed nor any document has been annexed indicating that the petitioner is in financial crisis.

8. It has further been stated that the amount of Rs. 7.65 crores are in the hands of the respondents as excess electricity duty paid by the petitioner but it seems that by means of order dated 30.07.2021 the Executive Engineer, Electricity Distribution Division-I, MVNL, Unnao has provided that excess electricity duty shall be adjusted towards future electricity duty to be paid by the petitioner.

9. The excess amount on electricity duty, it seems cannot be adjusted towards electricity charges and consequently even the order dated 30.07.2021 is not under challenge before this Court.

10. It is noticed that the Ombudsman has duly considered the grievance of the petitioner and has already fixed installments. The said installments have to be paid by post dated cheques by October, November and December, 2023. There is no reason for this Court to interfere with the order dated 21.09.2023 nor any reason has been demonstrated in present writ petition necessitating interference under Article 226/227 of Constitution of India. On equitable consideration the Ombudsman had already interfered in the said matter and in paragraph No. 8 of the writ petition, the petitioner has himself stated that he has no dispute against total liability of the said bill and has been unable

to demonstrate any financial crisis requiring interference of this case.

11. In light of the above, there is no merit in the present writ petition, accordingly the same is **dismissed**.

(Alok Mathur, J.)

Order Date :- 27.10.2023

Ravi/